

24STCV16620 24STCV16620

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-20

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Case Number: 24STCV16620 Hearing Date: July 20, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV16620

LAURA

POLTE-HORNSTEIN v. VAN FREIGHT LINES CORPORATION

July

20, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT WABASH NATIONAL CORPORATION'S MOTION TO COMPEL DEFENDANT KGZ
TRANSPORT CORP.'S RESPONSES TO FORM INTERROGATORIES, SET ONE AND REQUEST FOR
MONETARY SANCTIONS. DEFENDANT WABASH
NATIONAL CORPORATION'S MOTION TO COMPEL DEFENDANT KGZ TRANSPORT CORP.'S

RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE AND REQUEST FOR MONETARY SANCTIONS.

RULING:

The Court grants both
unopposed Motions, as prayed.

On or before August 20,
2026, Defendant KGZ TRANSPORT CORP. shall serve initial responses and produce documents, without objections, and in full compliance with the California Discovery Act (Code Civ. Proc. § 2016.010 et seq.), as to Defendant WABASH NATIONAL CORPORATION's Form Interrogatories and Requests for Production of Documents.

On or before that same
date, Defendant KGZ TRANSPORT CORP, and Burke, Williams & Sorensen, LLP, jointly and severally, shall pay discovery sanctions in the combined sum of \$3345.00 to Defendant WABASH NATIONAL CORPORATION, the Court finding the absence of substantial justification. (E.g., Code Civ. Proc., § 2023.030.)

Defendant to give notice.

I.

BACKGROUND

The Court incorporates by
reference the Background section of the Minutes entered on July 15, 2025.

On June 16, 2026, WABASH
NATIONAL CORPORATION (Moving Defendant) filed the two Motions to Compel Initial Responses to Form Interrogatories and Requests for Documents from KGZ TRANSPORT CORP. (Defendant). Additionally, the Motions contain requests for sanctions against Defendant and counsel, in the amounts of \$2,210.00 and \$1,135.00, respectively.

Defendant has filed no
Opposition to these matters.

II.

LEGAL STANDARD

A motion to compel initial discovery responses need only show that discovery was properly served on the opposing party, the time to respond expired, and no response was served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906; Code Civ. Proc., §§ 2030.290 [compelling initial interrogatory responses], 2031.300 [compelling initial document requests].)

A motion to compel initial discovery responses need not show good cause, meeting and conferring, or timely filing, and need not be accompanied by a separate statement. (Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.)

Monetary discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.)

III.

ANALYSIS

Moving Defendant states that Defendant, without justification, has served no responses to Form Interrogatories and Requests for Documents, even after an agreed extension and multiple email reminders.

“If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.)

The failure to file a proper and timely opposition in trial court creates a waiver of the issues on any appeal. (Bell v. Am. Title Ins. Co. (1991) 226 Cal.App.3d 1589, 1602; Cabrini Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693.)

Here, Moving Defendant

sufficiently evidenced that Defendant, without justification, served no discovery responses to duly served discovery requests. Defendant has filed no Opposition to show otherwise.

IV.

CONCLUSION

Therefore, the Court grants
both unopposed Motions, as prayed.